

EPA Compliance Workshops Don't Reduce Violations

Lessons from “The effect of compliance assistance on pollution discharges and violations of environmental regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026

Offering polluters free help to follow the rules doesn't make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance workshops found the workshops didn't reduce violations.

BACKGROUND

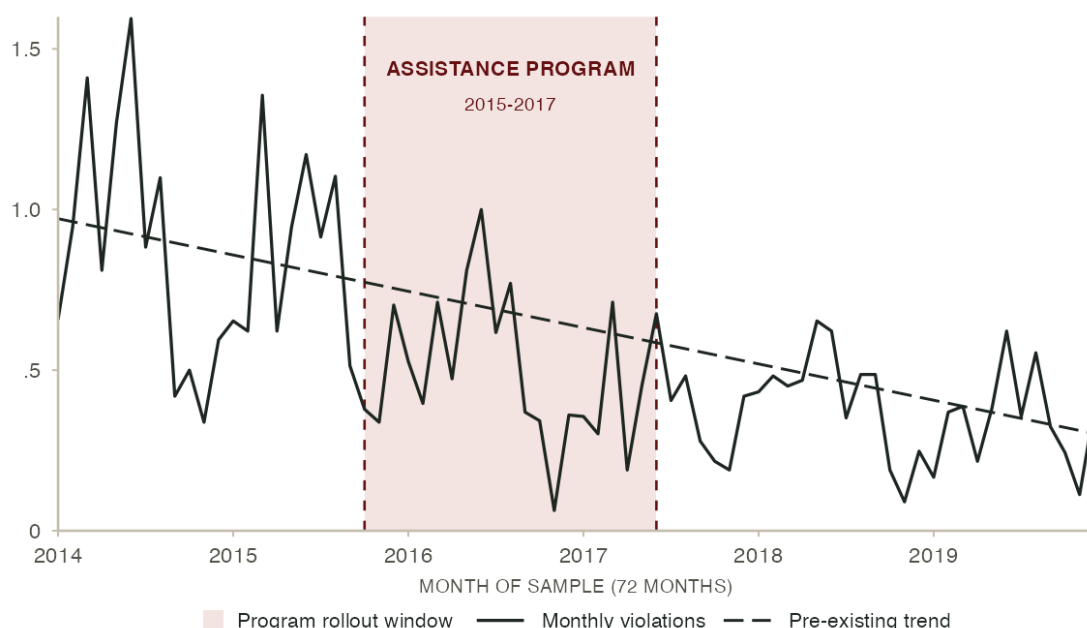
Environmental enforcement has long centered on penalties: inspect facilities, catch violations, and levy fines. **Compliance assistance** takes a different approach. Rather than punishing facilities that break the rules, regulators help them follow the rules in the first place, through free workshops, guidance, and technical support. The premise is that many violations, especially at smaller operations, stem from confusion or limited expertise rather than deliberate corner-cutting. Regulators have never settled on a single approach: over the decades, U.S. environmental policy has swung back and forth between the two, depending on the administration. Yet **whether the help actually changes behavior had rarely been tested**. New research studying hundreds of facilities that were offered free compliance workshops found no evidence of a reduction in violations.

WHAT THE STUDY FOUND

Evaluating whether or not the workshops worked takes more than tracking the violations of participating facilities after the workshops. Facilities change over time for all kinds of reasons, so **the real test is whether those who attended improved more than similar facilities that didn't**. The researchers built in that comparison, measuring attendees against otherwise similar plants that skipped the workshops, including some that were offered the very same free help but chose not to take it. They also looked beyond paperwork violations to the actual pollution the plants released into Ohio's waters.

VIOLATIONS PER FACILITY, 2014-2019

Source: Ferraro & Shimshack (2026).



In the figure, the jagged line is each month's violations per facility, the shaded band marks the years the workshops were delivered, and the dashed line traces the trend across the whole period. Comparing the violations of facilities that attended the EPA workshops before and after, the program looked like a clear win: violations fell by about half. However, facilities that did not attend the workshops improved just as much, and the dashed line shows why: the decline had begun *before* the first workshop was ever held, and it continued at the same steady pace afterward. **The workshops didn't drive that decline; violations were already falling on their own, whether or not a facility attended.**

TAKEAWAY

Compliance assistance rests on the idea that facilities break the rules because they don't fully understand them. For these wastewater plants, that wasn't the case — extra training and guidance changed little, a sign that their violations had other roots. **A program that solves a problem facilities don't actually have was never likely to work.**

The stakes are practical, not academic. Buoyed by the apparent success, the EPA had moved to expand the program to other states, spreading an approach that the evidence here says does not work. Expanding an ineffective program only multiplies its cost: wasted money, pollution that is never curbed, and communities that never see cleaner water. The lesson is not that assistance can never help; this is one program, and small benefits can't be ruled out. The point is that **such programs should be rigorously tested before they replace tools already known to work.**